



POLICE DEPARTMENT

July 27, 2012

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Antonio Gonzalez
Tax Registry No. 904050
Quartermaster Section
Disciplinary Case Nos. 2011-3738 & 2011-3964

The above-named member of the Department appeared before me on May 15, 2012, charged with the following:

Disciplinary Case No. 2011-3738

1. Said Police Officer Antonio Gonzalez, assigned to the 79th precinct, while on duty on January 1, 2010, at approximately 0430 hours, while in the vicinity of [REDACTED] Kings County, having become aware of a vehicle accident involving RMP #2089, did fail to request the Patrol Supervisor precinct of occurrence, to the scene.

P.G. 217-06, Page 1, Paragraph 3 – DEPARTMENT VEHICLE ACCIDENTS

2. Said Police Officer Antonio Gonzalez, assigned as indicated in Specification #1, at time, date and location set forth in Specification #1, having become aware that Police Officer John Balestrieri and Police Officer Gregory Clarke, 79th Precinct, had failed to safeguard a prisoner, did fail to report said serious misconduct to his Commanding Officer or the Internal Affairs Bureau.

P.G. 207 21, Page 1, Paragraph 1 ALLEGATIONS OF CORRUPTION AND
SERIOUS MISCONDUCT AGAINST
MEMBERS OF THE SERVICE

3. Said Police Officer Antonio Gonzalez, assigned as indicated in Specification #1, at time, date and location set forth in Specification #1, having become aware that his handcuffs had been lost or stolen, did fail to report the facts of the loss or theft to the Desk Officer, precinct of occurrence.

P.G. 219 20, Page 1, Paragraph 1 LOSS OF THEFT OF DEPARTMENT
PROPERTY

COURTESY • PROFESSIONALISM • RESPECT

4. Said Police Officer Antonio Gonzalez, assigned as indicated in Specification #1, at time, date and location set forth in Specification #1, having become involved in the police incidents set forth in Specification #1, #2, and #3, did fail to document said incidents in his Activity Log.

P.G. 212-08, Page 1, Paragraph 1 ACTIVITY LOGS

Disciplinary Case No. 2011-3964

1. Said Police Officer Antonio Gonzalez, assigned to the 79th precinct, while off-duty, on or about March 2, 2011, at approximately 2020 hours, while inside [REDACTED], Kings County, did engage in conduct prejudicial to the good order, efficiency and discipline of the Department, in that said Police Officer Gonzalez displayed his firearm to Person B, without proper police necessity. (As amended)

P.G. 203-10, Page 1, Paragraph 5 -- GENERAL REGULATIONS

2. Said Police Officer Antonio Gonzalez, assigned as indicated in Specification #1, while off-duty, at time, date and location set forth in Specification #1, did engage on conduct prejudicial to the good order, efficiency and discipline of the Department, in that said Police Officer Gonzalez threatened Person B with force, without proper police necessity. (As amended)

P.G. 203 10, Page 1, Paragraph 5 GENERAL REGULATIONS

3. Said Police Officer Antonio Gonzalez, assigned as indicated in Specification #1, while off-duty, at the time, date and location set forth in Specification #1, having been involved in a police incident, did thereafter fail and neglect to request the response of the Patrol Supervisor, precinct of occurrence. (As amended)

P.G. 212-32, Page 1, Paragraph 2 OFF DUTY INCIDENTS INVOLVING
MEMBERS OF THE SERVICE

The Department was represented by Paul Gallagher, Esq., Department Advocate's Office, and Respondent was represented by Craig Hayes, Esq.

The Department made a Motion to Dismiss Specification No. 1 of Disciplinary Case No. 2011-3738. Respondent, through his counsel, entered a plea of Guilty to the remaining charges in that case and a plea of Not Guilty to the subject charges of

Disciplinary Case No. 2011-3964. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Disciplinary Case No. 2011-3738

Specification No. 1 was dismissed by the Department. Respondent, having Pled Guilty, is found Guilty of Specification Nos. 2, 3 and 4.¹

Disciplinary Case No. 2011-3964

Respondent is found Not Guilty of all three Specifications.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Lieutenant Douglas Hassel, Captain Julio Ordonez, Jr., and Sergeant Victor Steele as witnesses.

Lieutenant Douglas Hassel

Hassel, a 28-year member of the Department currently assigned to the 69 Precinct, received a 10-52 dispute involving Respondent at [REDACTED] at approximately 8:29 p.m. on March 2, 2011. Hassel was assigned this job with his patrol supervisor, Sergeant Donahue. Upon arrival, Hassel and Donahue were greeted at the door of the residence by Person A. Person A immediately told Hassel that the incident was a complete misunderstanding. Also present in the home was Person A's son,

¹ Respondent pled guilty to Specification No. 4 without qualification, he offered mitigating testimony with regard to penalty as to Specification Nos. 2 & 3.

Person B. In the presence of Hassel, Person B said to Person A, "Mom, what Dad did was wrong." Person B then explained that he had tried to get between his mother and father during an argument, and his father said, "If you ever stand up to me again like that, I will shoot you." Person A and Person B identified the father as Respondent.

Upon learning that Respondent was an off-duty member of the Department, Hassel inquired as to Respondent's whereabouts. Neither Person A nor Person B knew of Respondent's whereabouts, nor were they aware as to his residence at the time. Hassel then brought Person A and Person B to the 69 Precinct stationhouse for questioning, where Hassel requested a duty captain to address an off-duty incident. Captain Julio Ordonez was subsequently assigned to the incident and took over the investigation involving Respondent.

On cross-examination, Hassel reiterated the initial statement by Person A was that the incident was a misunderstanding. Hassel additionally reiterated that Person B claimed that Respondent stated, "If you ever stand up to me again like that, I will shoot you."

Captain Julio Ordonez, Jr.

Ordenez, a 26-year member of the Department currently the Executive Officer of the 78 Precinct, was assigned as the Duty Captain for Brooklyn South on March 2, 2011. Ordonez responded to the incident at the 69 Precinct involving Respondent. Present at the stationhouse were Person B, Person A, Donahue, and Hassel. Ordonez conducted separate interviews with Person B and Person A.

[Department's Exhibit (DX) 1 is the compact disc recording of the interviews with Person B and Person A; DX 1A and 1B are the transcripts of the interviews with Person A and Person B, respectively.

In the account of the incident that Person A gave to Ordonez at the 69 Precinct, she explained that she had two children with Respondent, Person B, 19, and Person C, 11, [REDACTED]. Respondent had not lived in the family home for nearly one year, and Person A did not know where Respondent was living. On the evening of March 2, 2011, Respondent attempted to enter the residence [REDACTED] but could not, as Person A had recently changed the lock on the door. Present at the residence were Person A, Person B, Person C, and Person A's friend, Person D. Person A spoke with Respondent at the threshold of the door and discussed making a new copy of the key. Person B stood behind Person A's shoulder, angering Respondent. Respondent stated to Person A that if she did not make him a copy of the key, he would kick the door down. Person A, Person B, and Respondent then entered the home, at which point Respondent confronted Person B saying, "So you think you're a man, you want to stand up to me?" Respondent proceeded to take a gun from his waist, point it at Person B from a distance of about three feet, and say, "You think you're a man? I will shoot you. I will kill you." Person A described the weapon as black, and one that Respondent had carried for quite some time. Person A intervened between Respondent and Person B, moving the gun away from Person B. Respondent went into the bedroom, spoke briefly with Person D, and left the residence.

Person A explained that once, many years ago, she and Respondent had a heated argument during which Respondent grabbed her by the neck and pointed a gun to the

back of her head. Respondent was not regularly abusive toward Person A or the children, nor had Person A ever seen Respondent visibly drunk.

In the account of the incident that Person B gave at the 69 Precinct, he stated that he lived [REDACTED] with his mother, Person A, and sister, Person C. On the evening of March 2, 2011, Respondent attempted to enter the residence through the front door but was unable. Respondent and Person A began to argue through the window. The argument continued when Person A stepped outside. Person B was standing in front of the door with Person C to observe the argument when Respondent first threatened to kill Person B. Person A, Person B, and Respondent moved into the living room when Respondent pulled his gun from his jacket and pointed it at Person B, threatening to shoot him. Person B described the weapon as silver and black. Person A intervened by moving Respondent's outstretched arm away from Person B and directing Person B into another bedroom. Respondent went into Person A's bedroom, spoke briefly with Person D, and left the residence.

Person B explained that Respondent had not been living at the residence for the past two weeks. Person B and Respondent had a poor relationship because, according to Person B, Respondent did not support his family and lived elsewhere. Person B had not known Respondent to ever threaten other family members with a gun, nor did he smell alcohol on Respondent the evening of the incident.]

Respondent arrived at the 69 Precinct at 10:57 p.m., pursuant to a request made by Ordonez. Ordonez relieved Respondent of his firearm and requested the desk officer at the 79 Precinct, where Respondent was assigned, to access Respondent's locker and recover any weapons from it. Respondent was subsequently arrested and charged for several crimes, including menacing and criminal possession of a weapon.

During cross-examination, Ordonez confirmed that, pursuant to Department policy, Respondent was not interviewed at the 69 Precinct. Ordonez confirmed that typically, in situations involving criminal allegations against a member of the Department, there is a conferral with the District Attorney's office.

Upon further questioning, Ordonez stated that the gun recovered from Respondent at the 69 Precinct was Respondent's off-duty Kahr pistol.

Sergeant Victor Steele

Steele, a 21-year member of the Department currently assigned to Brooklyn North Investigations Unit, received an assignment concerning Respondent on March 18, 2011.² As part of the investigation, Steele monitored the criminal case against Respondent. The criminal case against Respondent stemming from the incident on March 2, 2011 was adjourned in contemplation of dismissal on June 8, 2011. It was consequently dismissed and sealed on December 8, 2011.

On September 20, 2011, Steele interviewed Respondent, Person A, and Person B. Steele's interview with Person A, conducted via telephone, was substantially similar to the account Person A gave at the 69 Precinct. Steele's interview with Person B, likewise conducted via telephone, was also substantially similar to the account Person B gave at the 69 Precinct.

On cross examination, Steele relayed that Person B did not seem vindictive toward Respondent when interviewed. There was no allegation of a dispute between Respondent and Person D, as Steele did not gather from his interviews that Person D and Person C were even present at the residence during the incident. Steele made no attempt to interview Person D or

² The erroneous date of March 18, 2009 was printed in the trial transcript.

Person C. In monitoring the criminal case, Steele spoke with the assistant district attorney assigned to Respondent's criminal case, who relayed that Person B and Person A declined to follow through with prosecution.

Respondent's Case

Respondent testified in his own behalf.

Respondent

Respondent, an 18-year member of the Department, is currently on modified assignment at the Quartermaster Section. He testified that while on duty at approximately 4:30 a.m. on January 1, 2010, he became involved in an incident in the vicinity of [REDACTED] Avenue in the 79 Precinct. Respondent and his partner responded to a radio run of a dispute at the location and upon arrival, Respondent observed a large crowd fighting in the street. Using his vehicle's public announcement system, Respondent ordered the crowd to disperse. Respondent ordered a particular individual who Respondent determined was instigating the fight to leave or face arrest.

Respondent and his partner parked the car and exited the vehicle, when Respondent observed one individual punch another individual. Respondent grabbed the assailant and handcuffed him. At that point, Police Officers Clarke and Ballisteri approached Respondent and asked if he wanted them to place the prisoner in the back of a Radio Motor Patrol (RMP) vehicle. Respondent handed the prisoner to them. Assuming that Clarke and Ballisteri placed the prisoner in the back of their RMP, Respondent went to interview the victim, to check if he was injured, and to determine

whether he wanted to press charges. The victim was uncooperative and provided no identifying information. At this time, another crowd began to run toward a nearby alleyway with officers in pursuit, as an approaching RMP slid on ice and veered toward Respondent. Respondent and his partner jumped out of the way and proceeded to run to the alleyway to assist other officers. In the alley, a brawl was being broken up by officers and supervisors at the scene. Respondent observed the same individual he had previously identified as an instigator to be antagonizing fights again in the alley. Respondent handcuffed him, placed him on the ground, and asked his partner to monitor the prisoner. The crowd was subsequently subdued and the sergeant on the scene ordered all units to go back to their commands.

Respondent transported the prisoner arrested in the alley back to the precinct, and began to process him. Respondent asked Officers Ballisteri and Clarke about the first prisoner arrested on scene, and was told that he had escaped. Respondent immediately informed the desk officer, Sergeant Hope, that a prisoner handcuffed by Respondent had escaped. After informing Hope of the escape, Respondent continued to process the second prisoner, subsequently issuing him a summons.

Respondent explained that he did not call for a supervisor to respond to the original scene because of the chaotic nature of the situation and because he knew that a supervisor was already at the scene. Respondent believed that he followed proper procedure in notifying Hope of an escaped prisoner. This is why he did not notify his commanding officer or the Internal Affairs Bureau. He did not make Activity Log entries about the incident or the prisoner because the situation was chaotic and making log entries completely slipped his mind.

Regarding the domestic incident on March 2, 2011, Respondent testified that he and Person A had been [REDACTED] for about one year but were still [REDACTED]. Respondent had returned to the family home from time to time to check up on his daughter and get his mail. Person B sometimes had friends over when neither he nor Person A were home, and Respondent was uncomfortable with strangers being around Person C in the home. Respondent's relationship with Person B at this time was shaky because Respondent set rules that Person B could not have friends over when he was not present. These rules were rooted in Respondent's concern for his daughter.

Respondent arrived at the [REDACTED] residence at approximately 8:20 p.m., but could not gain entry through the front door with his keys. The entrance had two doors, an outside glass door and an inside wooden door. As he jiggled the door, Person B opened the inside door, told Respondent that Person A was home with a guest, and closed the inner door. Respondent proceeded to ring the doorbell, and Person A came to the door and spoke with Respondent. Person A let Respondent in, and upon entering, Respondent observed Person B standing over Person A's shoulder with his arms crossed in a serious, protective stance. Respondent greeted Person C, and headed toward the bedroom to retrieve his mail. Person B went ahead of Respondent into his bedroom, and reappeared in the hallway with a shiny object hidden under his arm. This further angered Respondent, as he believed the object to be a gun. Respondent extended his arm, put his hand forward with his two fingers extended toward Person B's face, and said, "Are you fucking shitting me? I'll bust your ass." Person A, who was standing between Respondent and Person B, smacked Respondent's arm out of the way as Person B retreated back into the bedroom. Respondent witnessed Person B toss a hammer out of sight. During this confrontation,

Respondent's weapon was secured under his jacket in the shoulder holster on his left side. Respondent's jacket was open, and Respondent believed that the weapon may have been visible when his arm was outstretched toward Person B. At this point, Respondent proceeded to leave. Respondent subsequently reported to the 69 Precinct, where he was arrested.

On cross examination, Respondent testified that he told Hope that he had lost a prisoner who was in the custody of Officers Clarke and Ballisteri, and that his handcuffs were on the perpetrator. He did not report to Hope that Clarke and Ballisteri committed serious misconduct. Respondent agreed that a Complaint Report is supposed to be prepared when Department property is lost. He explained that he did not fill out a Complaint Report with regard to his lost handcuffs because the handcuffs were not Department-issued, as he had purchased them himself. Furthermore, he notified Hope about the handcuffs and took it upon faith that Hope would handle any necessary reports and notifications.

About the domestic incident, Respondent asserted that he did not make any report to the Department about the incident. As he walked to a friend's house on [REDACTED], Respondent was contacted by a union delegate and instructed to report to the 69 Precinct. When Respondent could not gain access to the [REDACTED] residence, he expressed that he was confused. Respondent asserted that he and Person A did not argue when he entered the house, and Respondent did not know Person D, Person A's guest.

On redirect examination, Respondent reasserted that though he initially thought Person B was holding a gun, he subsequently realized it was a hammer. Respondent was not in fear for his life during the confrontation with Person B.

Upon further questioning, Respondent asserted that when arrested at the 69 Precinct he was relieved of his Kahr K-9, a small, black nine millimeter gun. Respondent's service revolver, a black Sig Saur nine-millimeter, was taken from his locker at the 79 Precinct.

FINDINGS AND ANALYSIS

Disciplinary Case No. 2011-3738

The four specifications in this case stem from police action that took place in the early hours of January 1, 2010. Specification No. 1 was dismissed by the Department. Respondent has pled guilty to Specification Nos. 2 through 4, and he offered mitigating testimony with regard to Specification Nos. 2 and 3.

Disciplinary Case No. 2011-3964

This case arises from an incident that allegedly occurred involving Respondent, Person B and Person A on March 3, 2011. There is no question that the relationship between Respondent and Person A was coming apart. He did not live with her in what had been the [REDACTED] home on the date in question. There is no question that Respondent was unable to gain entry to the home that day because Person A had changed the locks. There is no doubt Person A had a friend in the house, apparently a man, however both Respondent and Person A (in her taped interview) maintain that this was not a source of friction. There is also no doubt that Person B became involved in a confrontation with Respondent. Person A speculated that this was actually the result of a dispute Respondent and his son had had the previous week over a video game.

What is key to all of the specifications in this case is whether Respondent pulled out his gun, pointed it at his son and made a threatening statement.

Person A and Person B made statements claiming that he did but have refused to appear here to testify. Respondent denies doing this. Therefore the only evidence we have that Respondent pulled out his firearm and made the threat is hearsay. Both statements which were recorded and those statements have been placed in evidence.

It should be noted that Respondent was arrested and charged and the criminal case against Respondent was ultimately dismissed apparently because of a lack of cooperation by Person A and Person B with the prosecution of that case.

It is well known that hearsay is permitted in this forum. But hearsay can only form the basis for a finding if it is deemed reliable. Generally that has meant some kind of independent evidence that would corroborate the hearsay claim. There is no such independent corroborative evidence in this case.

The Department has argued that the hearsay in this case is reliable because Person A and Person B have never recanted their statements and indeed have repeated the claim.³ The fact that a story is repeated does not make it reliable. The fact that hearsay sounds plausible does not in and of itself make it reliable. With regard to plausibility the Respondent's claim is equally plausible. The fact that it seems unlikely that a son would make such a complaint if it were not true is also not enough to turn the hearsay into substantial evidence as family members do all kinds of things to other family members that in the normal course of events we would not expect. Members of this Department are probably aware of that factor in human nature more than most people.

³ It is worth noting that in other cases where there has been a recantation the Department has argued that the recantation did not undermine the original hearsay statement.

One of the key issues with hearsay is that it denies the opposing party an opportunity to confront the witness with questions that might challenge that witness' credibility. The two interviews are well done. They are inherently friendly and designed to get a full and complete statement of what the claim is. They were not challenging in any way and probably should not have been given that the expectation was that these witnesses having called the police would follow through with their claim both in the criminal court and at this disciplinary proceeding.

In this case Respondent claimed that it was his son who had a weapon. He said it was shiny metal object that appeared at first to be a gun but turned out to be a hammer. During the two interviews, one with Person A and the other with the son, there was no mention of a hammer. If the son, in fact, had a weapon that would be a significant issue which might impact on his credibility and that of his mother particularly since there was no mention of a hammer in the taped interviews. Because the witnesses did not appear at this trial there was no opportunity to question them about this claim or any other that might bear on the credibility of their claims.

Specification Nos. 1 & 2 directly relate to the allegation that Respondent pulled out his firearm and pointed it at his son. Because there is no independent evidence capable of turning the hearsay into substantial and reliable evidence the Respondent is found Not Guilty of those two specifications. Specification No. 3 alleges that he failed to report a police incident. Despite the presence of a hammer the dispute as described by Respondent was verbal in nature. There being insufficient evidence to prove otherwise there is no evidence that notification and the response of a patrol supervisor was required. Respondent is found Not Guilty of this specification.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). The Respondent was appointed to the Department on August 30, 1993. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

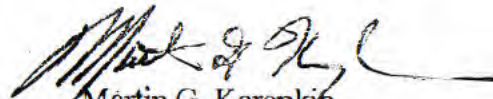
Respondent has pled guilty to three specifications. He offers no excuse with regard to failing to make memo book entries (Specification No. 4) but does claim mitigation circumstances regarding his failure to promptly report that two other officers had lost a prisoner (Specification 2) and for failing to report the loss of his handcuffs (Specification 3).

Respondent's mitigation is that he and the other officers were dealing with a melee. He arrested one individual, handcuffed him and placed him in the patrol car. He went back to deal with the disorderly crowd, which was in fact so unlawful that a woman helped the prisoner to escape.

He arrested one individual, handcuffed him, and handed him to another unit at the location, so that he could go interview the crime victim. Meanwhile, believing that his prisoner was secured in an RMP, Respondent effected a second arrest at the scene. Only upon his return to the station house did Respondent learn from the officers to whom he had handed over his first prisoner that that prisoner had escaped. The Department has not disputed Respondent's testimony that he reported the matter of the lost, handcuffed, prisoner when he got back to the station house.

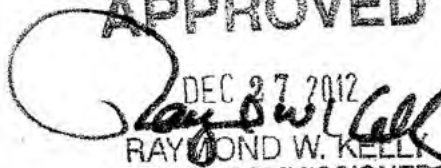
Under all the circumstances, it is recommended that Respondent forfeit a penalty of 15 days time previously served on suspension. It is further recommended that the additional 17 suspension days he already served be restored to him.

Respectfully submitted,



Martin G. Karopkin

Deputy Commissioner Trials

APPROVED
DEC 27 2012

RAYMOND W. KELLY
POLICE COMMISSIONER

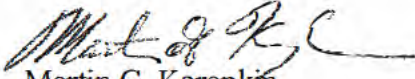
POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER ANTONIO GONZALEZ
TAX REGISTRY NO. 904050
DISCIPLINARY CASE NOS. 2011-3738 & 2011-3964

Respondent received an overall rating of 4.0 “Highly Competent” on his last three annual performance evaluations. He has received ten medals for Excellent Police Duty and one for Meritorious Police Duty. [REDACTED]

[REDACTED] Respondent was placed on Level-II Discipline Monitoring in June 2011. He has no prior formal disciplinary record.

For your consideration.


Martin G. Karopkin
Deputy Commissioner Trials